

1 witness's testimony.

2 MS. RASMUSSEN: I don't think I'm asking

3 any further questions.

4 THE COURT: Thank you. The objection is

5 overruled.

6 (Whereupon, the following proceedings were

7 held away from the bench in the presence of the jury.)

8 Q. (By Ms. Rasmussen) Now, Ms. Koch, I think you've

9 said that you didn't initially report this, but then you would

10 talk to family friends and other people that may have had you

11 finally decide to report?

12 A. We finally decided to report. Friends of ours

13 from the troop, but other personal friends had told us.

14 MR. REGAN: Objection. Hearsay, unless

15 they are present for cross-examination.

16 MS. RASMUSSEN: It's not being offered for

17 the truth of the matter. It's asserted just for what impact

18 that had on her decision to testify.

19 THE COURT: The objection is sustained.

20 MS. RASMUSSEN: I have nothing further.

21 THE COURT: Cross-examination.

22 MR. REGAN: Thank you, Your Honor.

23

24

25

CROSS-EXAMINATION

BY MR. REGAN:

Q. Good afternoon, Ms. Koch.

A. Hello.

Q. Prior to May 2010, Nick and Preston were pretty good family friends. Would that be correct?

A. They had become friends, especially in the Summer of 2009 when they went to Philmont Scout Ranch, and they were tent buddies for two weeks.

Q. They stayed in a pup tent together?

A. Yes.

Q. Only two of them in one little tent?

A. Among a whole bunch of other boys. Two boys to a tent, yes.

Q. So --

A. At a camp site.

Q. Two kids to a pup tent. About how many pup tents at the camp site?

A. I'd say you have it, yes, sir.

Q. Is it fair to say that your son spent the night at Preston's house numerous times?

A. Several times, yes.

Q. Scott Moore didn't have to get on the phone and convince you with all kinds of --

A. No. When it was a preplanned sleepover, then it's

1 preplanned.

2 Q. And was Preston an overnight guest at your home?

3 A. I believe he probably spent a few nights at my
4 house, yes.

5 Q. And you didn't have to get on the phone and
6 convince Scott or Mrs. Moore that you wanted their son to
7 spend the night at your house. The kids kind of decide it,
8 don't they?

9 A. Usually, yes. And there's never been a time that
10 I ever got on the phone and asked the parents: Oh, come on,
11 we're having good time. Can't your kid stay at our house?

12 Q. And you knew that Sue Moore was graduating from
13 Baker University the next day; right?

14 A. I did know that, yes.

15 Q. They made that clear to you and your son?

16 A. Pretty much, yes. That's why I didn't understand
17 why they were having a sleepover.

18 Q. Are you aware that your son recently testified
19 that he didn't know anything about any graduation?

20 A. I would believe that. My son probably didn't know
21 about that because why would he care about somebody else's
22 parent graduating from college?

23 Q. You and Mrs. Moore were good friends?

24 A. I didn't say "good friends." I said we were on
25 friendly terms.

1 Q. Isn't it true that you went up to her in Wal-Mart
2 in the last two weeks and insulted her?

3 A. It wasn't the last two weeks, no, sir.

4 Q. When was it?

5 A. It was in November. I saw her, and I was curious
6 if she was still married to Mr. Moore or not in lieu of things
7 that had gone on in the last two years.

8 Q. In a public department store, you went up to her
9 and you yelled not nice things to her; right?

10 A. That's not true. Would you like to know exactly
11 what I asked Mrs. Moore.

12 Q. It's --

13 A. No, I would like to tell you exactly what I asked
14 Mrs. Moore --

15 THE COURT: Wait for the question.

16 Q. (By Mr. Regan) I'm just asking you if you did go
17 up in a public place and insult her?

18 A. No, I did not. I asked if she was married to
19 Scott Moore.

20 THE COURT: Just a moment. You need to
21 wait for a question.

22 THE WITNESS: Sorry.

23 Q. (By Mr. Regan) After one of our last court
24 appearances, did you follow Mr. Moore and I down to the second
25 floor by the metal detector and insult him?

1 A. No, I did not.

2 Q. Are you sure about that?

3 A. I was leaving the court building, and then I
4 happened to see Mr. Moore talking to you after he sat here in
5 a meeting saying that he was incapacitated and had some type
6 of head problems and had to go to the Mayo Clinic.

7 Q. Right. He had just gotten back?

8 A. He wasn't back. He was going in October.

9 Q. Isn't it true you followed us all the way down to
10 the mailboxes, and I had to say, "Please, leave us alone"?

11 A. That is not true.

12 Q. All right.

13 A. I was exiting the building when I happened to see
14 Scott Moore who was able to talk with you and contribute to
15 his defense, but we had to sit and sit and wait for two and a
16 half years to come to trial.

17 Q. Are you volunteering this information so you can
18 help the State on their case?

19 A. I'm telling the truth. You're trying to make me
20 look like --

21 THE COURT: Just a moment. Wait for a
22 question.

23 THE WITNESS: Okay.

24 Q. (By Mr. Regan) Let's talk about this convincing
25 business. If you didn't want your son to spend the night at

1 the Moore's, you could have said no at any time; right?

2 A. That is very true.

3 Q. Isn't it true that you told your son about other

4 incidents at church camps that you had heard about from other

5 people?

6 A. That is not true, no.

7 Q. Your son indicated you kept some kind of family

8 calendar that would have the exact date that he supposedly

9 spent the night at Christmastime of '09; is that correct?

10 A. I have a planner, yes. And after the incident

11 that occurred in May of 2010, I got to thinking and talking,

12 and I was, you know, with my son, and then I decided --

13 especially when he was going to make a statement, I knew that

14 he was being real with me and honest. So I made sure, and I

15 marked the date because who would have thought it would take

16 over two and a half years to come here and talk to you today,

17 sir.

18 Q. Where are the dates?

19 A. In my calendar.

20 Q. Which is where?

21 A. In my house.

22 Q. And your reason why you didn't bring it to court

23 today to get the date that we've been trying to get the date

24 from you for two years?

25 A. I don't know what you mean by that.

1 Q. The date of the Christmas allegation?
2 A. I'll tell you, if you pull up the Blue Valley
3 website calendar back from 2009, and saw that the last day was
4 before, you know, the last day of classes, and then Christmas
5 break started, and you would have your date.
6 Q. Is there some reason you haven't given it to the
7 prosecutor's office as long as this case has been pending?
8 A. No one has asked me for it.
9 Q. When your son called, it was between 3:30 and four
10 on May 15th?
11 A. Yes, sir.
12 Q. Was it a call or a text?
13 A. It was a phone call.
14 Q. Did you recognize the phone number when it came
15 over your phone?
16 A. Yes, I did.
17 Q. Whose phone number was he calling you from?
18 A. He was calling me from the Moore house.
19 Q. Land line?
20 A. Land line.
21 Q. How long did it take you to get over there?
22 A. Assuming I got off of the phone, about 3:50. It
23 probably took me about fifteen or twenty minutes.
24 Q. And this initial phone call to you about whether
25 he could stay over or not came from your son?

1 A. Yes, it did.

2 Q. And he said, "Mom, I'd like to stay" and, to help
3 convince you, he puts Mr. Moore on?

4 A. I think Mr. Moore was standing by Nick, and he's
5 like, "What do you mean, Nick, isn't your mom going to let you
6 stay" sort of thing, and Mr. Moore got on the phone with me.

7 Q. Did you hear others in the background?

8 A. There was people in the home, yes, sir.

9 Q. Did you hear Sue in the background?

10 A. It was two and a half years ago.

11 Q. Do you recall?

12 A. I do not recall.

13 Q. Do you recall Preston's voice in the background?

14 A. To be really honest with you, I could hear a din
15 in the background, but I couldn't specifically identify
16 anyone's voices there.

17 Q. And you knew the family was going to be out of
18 town in Baldwin City the next day for graduation?

19 A. I didn't know what time.

20 Q. You knew there was going to be an out-of-town
21 celebration at Baker?

22 A. I knew, yes.

23 Q. That's at least an hour drive from the boy's home;
24 correct?

25 A. Yes, sir.

1 Q. Did you figure they wouldn't be there when you
2 went back to have this confrontation on Saturday?

3 A. I lied to my husband when I left the house and
4 said, "I'm going to get a drink at McDonald's," and drove over
5 to the Moore's house because I was so emphatically upset with
6 what had gone down, and I wanted to hear for myself what went
7 down from the Moore house. And I did not know what time was
8 the college celebration. I didn't want to ruin Sue Moore's
9 day, but Mr. Moore did a really bad thing.

10 Q. Did you go by Sunday and say, "Let's have a family
11 talk face-to-face?"

12 A. No, no. Because by Sunday we had come to our
13 family decision that Nicholas was going to make a police
14 report.

15 Q. And there was a Scouting outing where the boys
16 were together on Tuesday; correct?

17 A. There was a Scout meeting, yes.

18 Q. And you didn't tell Sue Moore, "Hey, your husband
19 put his hands on my son"?

20 A. I said nothing to Sue Moore at the school meeting
21 because when my son made his statement to the police officer,
22 we were told to say nothing, quiet. Let it go. Let the
23 wheels of justice do their job.

24 Q. Did you call Marcus and ask him what he saw and
25 heard?

1 A. I had called Marcus's parents probably late
2 Saturday morning and apologized to them that I didn't go knock
3 back on the Moore's door when I had gotten over my shock and
4 pulled him out of that house? Yes, I called Mark
5 Blanckensee's father and talked to his father, Steve.
6 Q. Did you talk to Marcus was my question.
7 A. No. I talked to his father, Steve.
8 Q. Have you e-mailed Marcus?
9 A. No.
10 Q. How long do you believe you were on the phone with
11 your son and Scott during the first conversation?
12 A. I'd say anywhere from five to seven minutes, but I
13 can't be accurate on that. That was more than two and a half
14 years ago.
15 Q. Back when you reported this to the police, did you
16 save your phone records that would tell us how long you were
17 on the phone?
18 A. No.
19 Q. Who called who?
20 A. Sir, what?
21 Q. Who called who? The phone records would tell us.
22 You get a monthly phone bill, don't you?
23 A. Yes, sir. I guess you can go back and get that
24 information, if you choose to.
25 Q. Where were you that Friday night?

1 A. I was at home because I answered the phone.
2 Q. Where were you earlier? Were you at home all
3 night?
4 A. I assume I was home all evening. I really don't
5 recollect. It was a long time ago.
6 Q. Do you recall receiving a letter from me?
7 A. Yes, I did.
8 Q. In registered mail asking if I could interview you
9 and your son at the DA's office?
10 A. That is true.
11 Q. The way you responded to me, you called me at 9:30
12 on a Friday night saying you would not be participating in any
13 interview?
14 A. I chose to acknowledge that you had sent me a
15 letter, and I was letting you know that I would just talk to
16 you here today, yes.
17 MR. REGAN: That's all.
18 THE COURT: Any redirect?
19 MS. RASMUSSEN: No, Your Honor.
20 THE COURT: Thank you for your testimony.
21 You may step down. The State's next witness.
22 MS. RASMUSSEN: The State calls Officer
23 Jeffrey Beatty.
24
25

1 JEFFREY BEATTY,
2 having been duly sworn to tell the truth, the whole truth and
3 nothing but the truth, testified as follows:

4 DIRECT EXAMINATION

5 BY MS. RASMUSSEN:

6 Q. What is your name?

7 A. Jeffrey Beatty.

8 Q. And where do you work?

9 A. The City of Overland Park.

10 Q. What do you do for the City of Overland Park?

11 A. I'm a police officer.

12 Q. How long have you worked for the City of Overland
13 Park as a police officer?

14 A. For about fourteen years, nine months,
15 approximately.

16 Q. All right. And prior to working for the Overland
17 Park Police Department, have you worked in law enforcement in
18 any other jurisdiction?

19 A. Yes, the City of Mission.

20 Q. How long were you with them?

21 A. Between two and three years.

22 Q. Were you working on the early evening of May 17th
23 of 2010?

24 A. Yes, I was.

25 Q. And were you contacted to respond to the police

1 station to take a report of a sexual battery?

2 A. Yes, I was.

3 Q. Who did you contact at the police department?

4 A. I contacted Nicholas -- I'm not sure the
5 pronunciation, Koch, and his parents, Gary and Lori.

6 Q. And I don't want to go into the specifics of Mr.
7 Koch's statement because he has testified here, but can you
8 tell me generally what he reported?

9 A. Basically, he reported that he was at a friend's
10 house spending the night, and the friend's father touched him
11 in the penis area.

12 Q. And did he say who that friend's father was?

13 A. Yes. He indicated that it was Scott Moore.

14 Q. Did he say the number of times that this had
15 occurred?

16 A. He said that there was an incident that had
17 happened a couple days before he came to the police station,
18 and he said there was another incident that happened a few
19 months before that around Christmastime.

20 Q. So around Christmastime, a few months before that.
21 That would have been December 2009?

22 A. That was my understanding, yes.

23 Q. Did you have Nick Koch write out a written
24 statement, or did you collect a written statement from him?

25 A. Yes. At some point he did a written statement at

1 the station.

2 Q. Now, at that time, with the Overland Park Police
3 Department, what was your assignment?

4 A. I was in the patrol division.

5 Q. As a patrol officer, when you get reports like
6 this, is it your job to conduct any further investigation?

7 A. We can sometimes. It all depends on the call load
8 and that kind of stuff. And that day I don't know if I was
9 assigned to the station or if I got called into the station.
10 If I was assigned to the station, I wouldn't have been able to
11 go outside the station.

12 Q. Okay. And then does the Overland Park Police
13 Department have an investigation department that these reports
14 will get forwarded on to?

15 A. Yes.

16 Q. Any additional follow-up needs to go to?

17 A. Yes, ma'am.

18 MS. RASMUSSEN: I have nothing further.

19 THE COURT: Cross-examination?

20 **CROSS-EXAMINATION**

21 **BY MR. REGAN:**

22 Q. Good afternoon, Officer.

23 A. Hello.

24 Q. I just have brief questioning in a couple areas.
25 Did the boy tell you he was in the room with two other friends

1 when all this stuff supposedly happen?

2 A. Yes. He said he was with his friend, Preston. It
3 was his birthday, and another boy, Marcus.

4 Q. Would it be fair to say that doing good police
5 work, if you could, you'd go in and interview Preston and
6 Marcus as soon as possible?

7 A. Well, that was the Investigation Department's
8 responsibility.

9 Q. But any good investigator would do that; right?

10 A. Potentially. Like I told her, I don't remember if
11 I was assigned to the station or if I got called to the
12 station. If I got assigned, they don't let us do follow-up.

13 Q. Did he say he heard the camera pop, a camera flash
14 was observed?

15 A. I don't remember he said anything about hearing.
16 I remember he said he was awakened by a flashing light, but I
17 don't remember him saying anything about hearing it.

18 Q. Did he tell you that he thought the light came
19 from the camera?

20 A. Yes.

21 Q. That would lead you to believe as a police officer
22 that someone took a picture?

23 A. Potentially.

24 Q. Now, we've got hard evidence on the crime scene on
25 the camera?

1 A. Yes.

2 Q. Would it be good police work to go get the camera?

3 A. Potentially.

4 Q. Go get a search warrant and take it?

5 A. Yes.

6 Q. The crime laboratory, there was a picture of a boy

7 lying down?

8 A. Those kind of details are taken care of by our

9 Investigation Department.

10 Q. Is it fair to say that it would be good to say

11 that you have photographs of the layout of the room so you can

12 see the proximity, lighting, things of that nature?

13 A. Possibly.

14 Q. You could have a diagram of the area?

15 A. Yes, sir.

16 Q. You didn't have anything to do with that stuff

17 whether it was done or not?

18 A. I took the initial report, sir.

19 MR. REGAN: Thank you. That's all.

20 THE COURT: Any redirect?

21 MS. RASMUSSEN: Nothing further of this

22 witness, Your Honor. May he be excused?

23 MR. REGAN: Sure.

24 THE COURT: You may step down and watch

25 your step. You are excused.

1 MS. RASMUSSEN: The State calls Sarah
2 Byall.

3 SARAH BYALL,
4 having been duly sworn to tell the truth, the whole truth and
5 nothing but the truth, testified as follows:

6 DIRECT EXAMINATION

7 BY MS. RASMUSSEN:

8 Q. What is your name?

9 A. Sarah Byall.

10 Q. And, Ms. Byall, back in May of 2010, where were
11 you employed?

12 A. At Sunflower House.

13 Q. How long did you work at that agency?

14 A. I worked there a little bit over eight years.

15 Q. What is Sunflower House?

16 A. Sunflower House is a children's advocacy center
17 that serves Johnson and Wyandotte County. A children's
18 advocacy center is designed to be a place that when an
19 allegation has been made, that sometimes something has
20 happened to a child, they can come to a central place, and
21 that brings investigating professionals to one location. That
22 hopefully prevents the child from having to go from place to
23 place and tell them what may have happened to them.

24 Q. What was your role at Sunflower House?

25 A. I was a forensic interviewer there.

1 Q. What does a forensic interviewer do?

2 A. My job as a forensic interviewer was to interview
3 children who have been brought to our agency. And we
4 interview kids ages two, if they were verbal and able to
5 communicate, all the way up to age 17. And then we also
6 interviewed developmentally delayed adults who may function on
7 a level that is equivalent with a child.

8 Q. Now, throughout the course of your career, how
9 many forensic interviews did you conduct, approximately?

10 A. Approximately, over 1,100.

11 Q. And to have that role as a forensic interviewer,
12 did you have to receive certain training and education?

13 A. Yes.

14 Q. What was your training and education?

15 A. I received my undergraduate degree in social work
16 from Kansas State University, and earned a master's degree
17 from the University of Kansas in social welfare. And when I
18 started work at the Sunflower House, they sent me to forensic
19 interview training that was held in Ann Arbor, Michigan.

20 Q. Did you have any licensures in the State of
21 Kansas?

22 A. Yes. I have maintained my social work license in
23 the State of Kansas since 1998.

24 Q. What does that require?

25 A. Ongoing continuing education, and that's pretty

1 much it.

2 Q. Now, Ms. Byall, you've actually left Sunflower
3 House to be a full-time mom since 2010; correct?

4 A. Yes.

5 Q. Do you still maintain your licensure now?

6 A. Yes, I do.

7 Q. Now, back when you worked at the Sunflower House,
8 was there an overall interview process that you would kind of
9 follow?

10 A. Yes.

11 Q. Could you explain that to the jury?

12 A. Depending on the age of the child, we have a
13 general interview flow that would happen. With younger kids,
14 there would be a lot of developmental assessment to make sure
15 they are able to understand the questions we're asking and
16 able to answer them in a way that we can understand.

17 As well with other kids, there's just some general
18 conversation that takes place at the beginning where I
19 introduce myself, explain my role is just to ask questions and
20 to listen. And then I give them the opportunity to tell me
21 why they are there. Most of the time they are able to do that
22 being an older person, older child.

23 And then I have them just tell me in their own words why
24 they are there to talk to me, and then after they have
25 finished telling me, then I go back over what they told me,

1 just to make sure I'm remembering things correctly, what they
2 are telling me so that I can clarify things or correct me if I
3 make mistakes, and I can ask them more detailed questions
4 about things that I might have questions about.

5 Q. When you begin an interview, what knowledge, if
6 any, do you have regarding what the child has reported?

7 A. At Sunflower House we do what's called limited
8 knowledge interviews. That means as an interviewer I'm not
9 told why the child is there. I'm told that they have made a
10 disclosure. I'm told who they have told, but I am not told
11 what they disclosed, what happened to them, and that's an
12 effort to make sure I'm getting the information from them and
13 not from any other sources.

14 Q. Now, at some point during the interview that we're
15 going to watch in just a moment, you get up and leave the
16 room?

17 A. Yes.

18 Q. And then you come back. Do you usually do that
19 during an interview?

20 A. Yes.

21 Q. What's done during that?

22 A. The goal for the forensic interview is to help the
23 child tell what's happened to them one time and have that be
24 comprehensive so other investigating professionals don't go
25 back and talk to them again. The goal when I take my break is

1 I go next door to -- there's an observation room where the
2 investigators are there, and they are able to see what's
3 happening at that time on a closed-circuit camera. So I ask
4 them if there's any other clarifying questions they need
5 answered, and hopefully it prevents them from reinterviewing
6 the child after the interview takes place.

7 Q. And that interview is recorded -- or your
8 interview with the child -- I'm sorry, that was a poor
9 question on my part.

10 Your interview with the child and what goes on in that
11 room while you're in contact with the child is all recorded?

12 A. Yes, it is.

13 Q. On May 27th, 2010, did you conduct an interview of
14 Nicholas Koch?

15 A. Yes, I did.

16 Q. The format that we've discussed here, is that all
17 consistent with your interview of Nicholas Koch back that May?

18 A. Yes.

19 MS. RASMUSSEN: May I approach?

20 THE COURT: Yes.

21 Q. (By Ms. Rasmussen) I'm going to show you what I've
22 marked as State's Exhibit No. 2. Is that your interview with
23 Nicholas Koch?

24 A. Yes, it is.

25 Q. Is that a fair and accurate representation of your

1 contact with him on that date?

2 A. Yes.

3 MS. RASMUSSEN: Your Honor, at this time,
4 the State moves to admit State's Exhibit 2.

5 MR. REGAN: Can we approach for a moment?

6 THE COURT: Yes.

7 (Whereupon, the following proceedings were
8 held at the bench outside of the presence of the jury.)

9 MR. REGAN: Would you have note our
10 objection to the hearsay nature of this exhibit as well as the
11 cumulative nature of the exhibit. It's regurgitating what
12 we've heard from Nick Koch.

13 THE COURT: Yes. Your objection is noted.
14 It will be overruled. That witness is here and available for
15 cross-examination, and it's my understanding that he will
16 remain available for cross-examination.

17 MR. REGAN: Thank you.

18 MS. RASMUSSEN: Thank you.

19 (Whereupon, the following proceedings were
20 held away from the bench in the presence of the jury.)

21 MS. RASMUSSEN: Your Honor, at this time I
22 move to publish State's Exhibit No. 2.

23 THE COURT: You may do so.

24 (Whereupon, State's Exhibit No. 2 was
25 published to the jury.)

1 MS. RASMUSSEN: Your Honor, at this time
2 the State has no further questions of Ms. Byall.

3 THE COURT: Cross-examination?

4 MR. REGAN: Your Honor, please.

5 CROSS-EXAMINATION

6 BY MR. REGAN:

7 Q. Good afternoon, Ms. Byall. Thank you for coming
8 to court today. I have very few questions for you.

9 Your interview was about 12 days after the fact, twelve
10 days after May 15th?

11 A. After May 15th.

12 Q. Yes.

13 A. Yes.

14 Q. Nick's mother had taken him to the Sunflower
15 House?

16 A. Yes.

17 Q. Was Officer Fizer nearby as well?

18 A. He's the detective who referred the case, yes.

19 Q. Was he in the room as well?

20 A. He was not the room during the interview, but he
21 was in the observation room.

22 Q. But he was in the observation room in the
23 Sunflower House?

24 A. Sorry.

25 Q. He was in the observation room in the Sunflower

1 House; correct?

2 A. Yes.

3 Q. Nick was certain that two photographs had been
4 taken of him?

5 A. He told me he observed or felt two flashes, yes.

6 Q. And did Nick appear certain that this alleged
7 abuse had taken place once, possibly twice. He wasn't certain
8 about the earlier time; correct?

9 A. Correct.

10 MR. REGAN: That's all. Thank you.

11 THE COURT: Any redirect?

12 MS. RASMUSSEN: No, Your Honor.

13 THE COURT: Thank you for your testimony.
14 You may step down.

15 MS. RASMUSSEN: Your Honor, may Ms. Byall
16 be excused?

17 THE COURT: Any objection?

18 MR. REGAN: No.

19 THE COURT: She may be excused.
20 (Whereupon, there was an off-the-record
21 discussion at the bench.)

22 THE COURT: The State may call its next
23 witness.

24 MS. RASMUSSEN: The State calls Marcus
25 Blanckensee.

1 MARCUS BLANCKENSEE,
2 having been duly sworn to tell the truth, the whole truth and
3 nothing but the truth, testified as follows:

4 DIRECT EXAMINATION

5 BY MS. RASMUSSEN:

6 Q. What is your name?

7 A. My name is Marcus Blanckensee.

8 Q. I'm going ask you, Mr. Blanckensee, to move
9 forward and talk into the microphone so everyone can hear.

10 A. You got it.

11 Q. Can I call you Marcus?

12 A. Yes.

13 Q. How old are you, Marcus?

14 A. I'm 18.

15 Q. Do you know Preston Moore?

16 A. I do.

17 Q. How do you know him?

18 A. Through Scouting.

19 Q. Are you in Boy Scouts as well or were you?

20 A. I was.

21 Q. And how do you know, or do you know Nicholas Koch?

22 A. Through Scouting and school.

23 Q. I want to go back to May 14th and May 15th of
24 2010. Did you attend a birthday party on those days?

25 A. Yes.

1 Q. Who for?
2 A. Preston.
3 Q. What did you guys do?
4 A. We went to watch a movie, went out to dinner, and
5 I believe some of us stuck around and spent the night with
6 Preston.
7 Q. Do you remember what movie you went to see?
8 A. Iron Man 2.
9 Q. And when you guys -- where did you go after the
10 movie and after dinner?
11 A. I think we went back to the house or his house.
12 Q. All right. And you said some of you slept over?
13 A. Yeah.
14 Q. Who slept over?
15 A. I think it was me and Nick only.
16 Q. Was Preston also there?
17 A. Yes.
18 Q. What room of the house did you guys sleep in?
19 A. In the living room with the TV.
20 Q. Where was Nick sleeping?
21 A. I believe he was to my left, as I was sleeping in
22 the center of the room.
23 Q. Where were you sleeping at?
24 A. Kind of on a reclining chair near the front of the
25 room.

1 Q. Okay. And at any time do you remember being,
2 well, waking up in the middle of the night or in the early
3 morning hours?

4 A. Only about three to 3:15.

5 Q. What woke you up?

6 A. I was sick, so probably just not being able to
7 breathe.

8 Q. Okay. What did you see when you woke up?

9 A. Well, I saw Nick and his mom had come to pick him
10 up and take him back to his house.

11 Q. Was that usual for Nick to get up and leave in the
12 middle of the night?

13 A. No.

14 Q. Prior to waking up and seeing that Nick's mom had
15 come to get him, did you see anything going on?

16 A. I did not.

17 Q. Were you asleep?

18 A. Probably.

19 Q. Did you hear anything?

20 A. No.

21 Q. Did you get up at all?

22 A. I did not.

23 Q. Did you touch Nick or anyone else in the room?

24 A. No.

25 MS. RASMUSSEN: I have nothing further of

1 this witness.

2 THE COURT: Cross-examination?

3 MR. REGAN: Your Honor, please.

4 CROSS-EXAMINATION

5 BY MR. REGAN:

6 Q. Good afternoon, Marcus. My name is Kevin Regan.
7 I'm Scott Moore's lawyer, and I have a few questions for you.
8 Is it fair to say we never met before?

9 A. I think it's fair to say.

10 Q. And we've never talked before, and the State may
11 not know this, but you've been subpoenaed by us to be here
12 this week as well; right?

13 A. Yes.

14 Q. Did you receive a subpoena from my investigator
15 sometime last week?

16 A. I think so.

17 Q. Telling you to be here when it's our turn to put
18 on evidence, and I'll even tell you you're released from that
19 subpoena because we'll just talk about your testimony now.

20 A. Okay.

21 Q. Had you slept over at the Moore house before May
22 15th?

23 A. Yes, I had.

24 Q. Have you slept over there since then?

25 A. No.

1 Q. Had you slept over there before with Nick Koch,
2 before May 15th?
3 A. Did you say before?
4 Q. Yes.
5 A. Yes.
6 Q. How many times did you, if you can remember?
7 A. I think it was just once.
8 Q. Do you remember when that was?
9 A. I don't.
10 Q. Did Nick Koch mention anything to you on May 15th,
11 the night of Preston's birthday party, that he had been
12 molested by Scott Moore?
13 A. No, he didn't mention anything.
14 Q. Did he wake you up and say: Hey man, this man put
15 his hands on me. Let's get out of here?
16 A. He did not wake me up.
17 Q. Did you guys go to the same school?
18 A. We did.
19 Q. You did at the time?
20 A. Yes.
21 Q. Did he say to you Monday morning at school: Hey,
22 you won't believe what happened to me at the Moore house?
23 A. He did not mention it at all.
24 Q. Did he mention it to you the next week in school?
25 A. No.

1 Q. So he never told you: Hey, Scott Moore put his
2 hands on me while you were laying there and his son was laying
3 right next to me, and his wife was sleeping upstairs?
4 A. As far as I know.
5 Q. As far as you can recall, you fellows had been
6 treated well by the Moore family; right?
7 A. Yes.
8 Q. And did you know it was a big occasion in this
9 family not only to celebrate Preston's birthday, but folks
10 were coming from out of town for Ms. Moore's graduation the
11 next day from Baker University?
12 A. I did not know that.
13 Q. You did not know that? Did you wonder why all
14 these parents and uncles were at their house?
15 A. No, I didn't know.
16 Q. Anyway, the Moores treated you to Old Chicago
17 Pizza?
18 A. Yes.
19 Q. And then Iron Man?
20 A. Uh-huh.
21 Q. Was there a ride to the Moore home from the
22 theater?
23 A. Yes, there was.
24 Q. And the vehicle was Scott Moore's?
25 A. I think so.

1 Q. Preston Moore?
2 A. Yes.
3 Q. Nick Koch?
4 A. Yes.
5 Q. Yourself?
6 A. Uh-huh.
7 Q. The two other boys?
8 A. The two other boys.
9 Q. And did Mrs. Moore and their daughter, Kirsten
10 Moore, go in the other vehicle?
11 A. Yes.
12 Q. The Volvo?
13 A. Uh-huh.
14 Q. Is that a yes?
15 A. Yes.
16 Q. The reporter is trying to take down what you're
17 saying for the record so if you can try to say yes or no for
18 her benefit, please.
19 A. You got it.
20 Q. Thank you. I appreciate it.
21 Is it fair to say that you guys after the movie went
22 downstairs and played video games until approximately 3:30?
23 A. Yes.
24 Q. Do you recall about how long you guys played video
25 games?

1 A. It was for a while. I don't think we stopped
2 until about maybe midnight.

3 Q. And then you came upstairs?

4 A. We did.

5 Q. Did you notice Mrs. Moore laying there? Sitting
6 in her chair?

7 A. I did not notice that.

8 Q. Is it possible that she was there but because of a
9 lapse of time, you don't recall?

10 A. Possibly.

11 Q. Was the TV on or off?

12 A. The TV was off.

13 Q. Did you guys decide to watch a movie together?

14 A. We did not watch a movie.

15 Q. Are you sure about that?

16 A. When you said -- did you decide to watch a movie
17 during that night?

18 Q. Yes, sir, upstairs in the family room?

19 A. I don't know about that.

20 Q. Is it possible you did, but you just don't
21 remember?

22 A. Yes, it's possible that we did, but I do not
23 recall it.

24 Q. The Moores had a dog back in those days, Marble, a
25 big Great Dane, about this tall, maybe four or five feet tall,

1 maybe taller?
2 A. Yes.
3 Q. Maybe taller than you?
4 A. Yes.
5 Q. Was that an aggressive, friendly dog?
6 A. It was a big dog, I must admit, but I don't think
7 it was too aggressive.
8 Q. Didn't come over to you when you walked in the
9 room?
10 A. It did, but it didn't really do anything else.
11 Q. Earlier that night Mr. Moore had given one of the
12 boys a ride home; correct?
13 A. I don't know about that. I know someone needed a
14 ride home. I don't know who gave the transportation or not.
15 Q. And another boy walked home on his own?
16 A. Maybe, I don't know about that.
17 Q. And when you boys were asleep --
18 MR. REGAN: May I approach the witness,
19 Your Honor?
20 THE COURT: You may.
21 Q. (By Mr. Regan) Marcus, when you boys were asleep,
22 you boys were all kind of close together; right?
23 A. Yeah.
24 Q. You guys were in the family room?
25 A. Yes.

1 Q. I'm going to show you what's marked as Defendant's
2 Exhibit 19. Does that look like the couch Nick was sleeping
3 on?
4 A. Yes.
5 Q. Right across from there, this is a further-away
6 view of Nick's couch on Defendant's 18; right?
7 A. It looks like the couch.
8 Q. And Defendant's 17 shows us where Nick was
9 sleeping over here, and you were over here across the room;
10 right?
11 A. Yes.
12 Q. And Preston is sleeping here in his mom or dad's
13 chair; right?
14 A. I think.
15 Q. Nobody is sleeping near the empty chair?
16 A. I believe that chair was empty, yeah.
17 Q. Is it fair to say that these are very close
18 quarters? That couch is a good eight, about eight feet from
19 that couch?
20 A. I would say about eight feet.
21 Q. Now, you guys are about as close together as where
22 you are from the jury box right now?
23 A. Probably.
24 Q. All right. Would it be fair to say that Preston
25 is very, very close to this couch as he's laying there that

1 night; right?

2 A. Yeah.

3 Q. He's closer to where Nick was than you are to this

4 juror over here?

5 A. I'd say so.

6 Q. Very, very close; right?

7 A. Yes.

8 Q. Yes?

9 A. Yes.

10 Q. Marcus, that night as you're lying there, you

11 don't hear any loud pop from a camera or anything like that?

12 A. That is correct.

13 Q. And you don't see any bright flash of light;

14 correct?

15 A. I did not see any flash.

16 Q. And if you didn't see one, you didn't see two

17 bright flashes of light; correct?

18 A. No.

19 Q. And you didn't hear your friend Nick say: Hey,

20 man, leave me alone or anything like that?

21 A. I did not hear Nick say anything.

22 Q. At some point in time, you became aware that Nick

23 was leaving?

24 A. Yes.

25 Q. And all Nick told you is, "Hey, I don't feel well."

1 I forgot my meds. I'm leaving."?
2 A. He didn't tell me anything.
3 Q. He just left?
4 A. He just left.
5 Q. And have you been a guest at the Moore's before
6 that night?
7 A. Before the night of this incident?
8 Q. Yes.
9 A. Yes, I have.
10 Q. Are you aware that Mr. and Mrs. Moore's bedroom is
11 directly above the room that you guys were in?
12 A. I do not know that. I have not been upstairs.
13 Q. Did you notice that the older girl, Kirsten, had
14 gone upstairs to bed?
15 A. I'm pretty sure she had, but I didn't actually see
16 her go upstairs.
17 Q. And you didn't hear any cameras going on, and you
18 didn't see any flash, and you didn't hear any loud footsteps
19 and see Mr. Moore walk around the room either?
20 A. I did not.
21 Q. And would it be fair to say that that floor, if
22 you've been there before, is a concrete floor with carpet over
23 it. It's a real solid kind of --
24 A. It was.
25 Q. -- not like creaky floors, like hardwood floors

1 that creak when you walk?

2 A. Yeah.

3 Q. Now, this set of allegations, the last one
4 happened in May of 2010. But isn't it true that the Overland
5 Park Police Department didn't come take a statement from you
6 until October 27th of 2010?

7 A. I knew somebody came to have an investigation. It
8 was sometime in October, but I'm not sure if it was the police
9 or not.

10 Q. But at some point in time on October 12th did you
11 talk to Detective Fizer?

12 A. I may have. I just probably didn't recognize him.

13 Q. His report may have been generated on October
14 12th. Do you recall talking to him on September 22nd?

15 A. I know we talked sometime in the fall. I don't
16 know the exact date.

17 Q. Did he show up at your house?

18 A. He did, if that was him.

19 Q. Now, are you aware that the interview took place
20 because I requested the District Attorney's Office to send --

21 MS. RASMUSSEN: Objection. Relevance.

22 THE COURT: Overruled.

23 Q. (By Mr. Regan) My question was, are aware that
24 that interview took place because I requested Detective Fizer
25 to come out and talk to you?

1 A. I didn't know that, but I knew someone had
2 come -- all I knew was someone had come to investigate what
3 had happened.

4 MR. REGAN: Thank you so much for coming to
5 court. And, again, you're released from our subpoena. The
6 prosecutor may ask you some questions.

7 THE COURT: Anything further by the State?

8 MS. RASMUSSEN: Nothing further by the
9 State.

10 THE COURT: Thank you for your testimony.
11 You may step down.

12 It is 4:37, and the State's next witness is a little more
13 lengthy. It's been a long day. I generally try to stop at
14 five o'clock, but if we're done with a witness, we'll break,
15 and I think the next witness is terribly lengthy. We're going
16 to take our evening recess. I will remind you of the Court's
17 prior admonition not to discuss the testimony with anyone or
18 look at anything or look at any sort of social media or
19 Internet.

20 We'll reconvene, and I'd like you in court at nine, so if
21 you could be here at 8:50. There will be coffee and treats
22 for you, and I'd like to start court formally at nine. If
23 there's nothing further, we'll stand in recess.

24 (Whereupon, the jury leaves the courtroom
25 at 4:40.)

1 THE COURT: You may be seated. We are
2 outside the presence of the jury. Counsel and defendant
3 appear as before. Will there be any other matters that we
4 need to take up in the morning, Counsel?

5 MS. RASMUSSEN: As far as the State, I
6 think we've taken up any issues and we are fairly on time. We
7 didn't get to one witness today. We would have liked to, but
8 I think we're still going to be in the position that we could
9 rest late at the end of the morning tomorrow or early
10 afternoon at the latest.

11 THE COURT: Do you have anything to take
12 up, Mr. Regan?

13 MR. REGAN: No, ma'am. Just so you'll
14 know, we'll have a block of witnesses that I think we can
15 knock out in one court session. By that I mean, if we had
16 tomorrow afternoon.

17 THE COURT: Yes.

18 MR. REGAN: I think we could without any
19 problem. Frankly, one is longer than the other.

20 At some point in time before we adjourn the trial, I
21 would like a chance to make an offer of proof with Nick, and I
22 guess that Preston would be a witness that I would be offering
23 that I think I can't get into in front of the jury.

24 THE COURT: Do you want to take that up in
25 the morning early break or at noon recess?

1 MR. REGAN: The noon recess would be fine.
2 Whatever is convenient.
3 THE COURT: Let's start at nine o'clock
4 then, if everybody is present and ready a little before nine.
5 Anything further?
6 MS. RASMUSSEN: Just to make sure we should
7 tell Mr. Koch to be here for his offer of proof rather than
8 have him sit around all day.
9 THE COURT: I would say at the conclusion
10 of your evidence around the noon recess would be an
11 appropriate time.
12 MS. RASMUSSEN: Okay. We can do that.
13 MR. REGAN: Can we approach, off the record
14 about something.
15 (Whereupon, Court adjourned at 4:50 p.m.)
16 * * * * *
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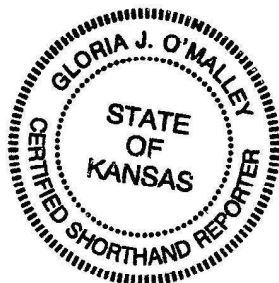
C E R T I F I C A T E

STATE OF KANSAS)
JOHNSON COUNTY)

I, Gloria J. O'Malley, a certified shorthand reporter, and the regularly appointed, qualified, and Acting Official Reporter of Division No. 13 of the Tenth Judicial District of the State of Kansas, do hereby certify that as such Official Reporter, I was present at and reported in machine shorthand the above and foregoing proceedings.

I further certify that a transcript of my shorthand notes was typed, and that the foregoing transcript is a true and correct transcript of my notes in said case to the best of my knowledge and ability,

SIGNED, OFFICIALLY SEALED, AND FILED
WITH THE CLERK OF THE DISTRICT COURT OF JOHNSON COUNTY
KANSAS.



Gloria J. O'Malley
Gloria J. O'Malley, CSR No. 1383